

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000087

Sa.Medina

Recorded On: 6/11/2026 11:45:35 AM

Number of Pages: 1

NF Pages: 1

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information

Document Number	00000000087
Receipt Number	1996785
Fees	\$48.00



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX



RECORDING REQUESTED BY:

WHEN RECORDED MAIL TO:

ServiceLink Agency Sales and Posting, LLC
c/o Trustee Corps
17100 Gillette Avenue
Irvine, CA 92614
(949) 252-8300

TS No TX07000310-26-1

APN H78800601700470

TO No 260191173-TX-RWI

**NOTICE OF FORECLOSURE SALE and
APPOINTMENT OF SUBSTITUTE TRUSTEE**

WHEREAS, on March 14, 2025, RUSSEL WELLS, A MARRIED MAN AND VIVIAN WELLS, HIS WIFE as Grantor/Borrower, executed and delivered that certain Deed of Trust in favor of ESTELLA GUTIERREZ as Trustee, MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. as nominee for ROCKET MORTGAGE, LLC, its successors and assigns, as original Beneficiary, which Deed of Trust secures the payment of that certain Promissory Note of even date therewith in the original amount of \$324,022.00, payable to the order of Rocket Mortgage, LLC sbm Nationstar Mortgage LLC as current Beneficiary, which Deed of Trust recorded on March 14, 2025 as Document No. 20250020523 in El Paso County, Texas. Deed of Trust covers all of the real property described therein, including, but not limited to, all of the following described property, rights and interests (the "Property"), to-wit: SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF

APN H78800601700470

WHEREAS, defaults have occurred in the covenants of the Deed of Trust, monetary or otherwise, and the indebtedness secured by and described in the Deed of Trust is now wholly due, and Rocket Mortgage, LLC sbm Nationstar Mortgage LLC, the legal holder of such indebtedness and the liens securing same has requested either one of the Substitute Trustees to sell the Property in accordance with applicable law and the terms and provisions of the Deed of Trust.

NOW THEREFORE, NOTICE IS HEREBY GIVEN that on **Tuesday, August 4, 2026 at 10:00 AM**, no later than three (3) hours after such time, being the first Tuesday of such month, the Substitute Trustee will sell the Property at a public venue to the highest bidder for cash. The sale will take place in El Paso County, Texas, at the area designated by the Commissioner's Court for sales of real property under a power of sale conferred by a Deed of Trust or other contract lien as follows: **At the El Paso County Coliseum, 4100 E Paisano Dr, El Paso, TX 79905, or if the preceding area is no longer the designated area, at the area most recently designated by the County Commissioner's Court.**

The Deed of Trust may encumber both real and personal property. Formal notice is hereby given of Rocket Mortgage, LLC sbm Nationstar Mortgage LLC's election to proceed against and sell both the real property and any personal property described in said Deed of Trust in accordance with and Rocket Mortgage, LLC sbm Nationstar Mortgage LLC's rights and remedies under the Deed of Trust and Section 9.604(a) of the Texas Business and Commerce Code.

NOTICE IS FURTHER GIVEN, that except to the extent that the Substitute Trustee may bind and obligate Mortgagors to warrant title the Property under the terms of the Deed of Trust. Pursuant to Section 51.009

TS No TX07000310-26-1

APN H78800601700470

TO No 260191173-TX-RWI

of the Texas Property Code, the Property will be sold in "as is", "where is" condition. Conveyance of the Property shall be made without any representations or warranties whatsoever, expressed or implied. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters and are advised to conduct an independent investigation of the nature and physical condition of the Property.

Pursuant to Section 51.009 of the Texas Property Code, the Property will be sold in "as is", "where is" condition, without any expressed or implied warranties, except as to the warranted.

Effective **March 1, 2026**, new federal regulations (89 Fed. Reg. 70.258) may impact residential real property (1-4 residential units) title transfers to covered entities trusts, with reporting requirements unless exempt. <https://www.federalregister.gov/documents/2024/08/29/2024-19198/anti-money-laundering-regulations-for-residential-real-estate-transfers>

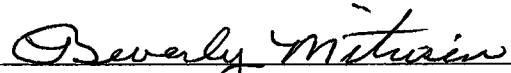
In accordance with Texas Property Code Section 51.0076, the undersigned attorney or authorized agent for the mortgage servicer has named and appointed, and by these presents does name and appoint ServiceLink Agency Sales and Posting, LLC and the named Substitute Trustee(s) below, Substitute Trustee to act under and by virtue of said Deed of Trust.

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.



Starr Meehan, Authorized Signatory

Dated: June 4, 2026



ServiceLink Agency Sales and Posting, LLC
Substitute Trustee(s) *Beverly Mituisin*

Dated:

Certificate of Posting

My name is _____

and my address is _____

I declare under penalty of perjury that on _____ I filed and/or recorded this Notice of Foreclosure Sale at the office of the El Paso County Clerk and caused it to be posted at the location directed by the El Paso County Commissioners.

ASSERT AND PROTECT YOUR RIGHTS AS A MEMBER OF THE ARMED FORCES OF THE UNITED STATES. IF YOU ARE OR YOUR SPOUSE IS SERVING ON ACTIVE MILITARY DUTY, INCLUDING ACTIVE MILITARY DUTY AS A MEMBER OF THE TEXAS NATIONAL GUARD OR THE NATIONAL GUARD OF ANOTHER STATE OR AS A MEMBER OF A RESERVE COMPONENT OF THE ARMED FORCES OF THE UNITED STATES, PLEASE SEND WRITTEN NOTICE OF THE ACTIVE DUTY MILITARY SERVICE TO THE SENDER OF THIS NOTICE IMMEDIATELY.

TS No TX07000310-26-1

APN H78800601700470

TO No 260191173-TX-RWI

**SALE INFORMATION CAN BE OBTAINED ON LINE AT <https://www.servicelinkauction.com/>
FOR AUTOMATED SALES INFORMATION PLEASE CALL: ServiceLink Auction | Hudson and
Marshall AT (866) 539-4173**

FOR REINSTATEMENT / PAY OFF REQUESTS CONTACT: (800) 567-4735

THIS IS AN ATTEMPT TO COLLECT A DEBT. ANY INFORMATION OBTAINED WILL BE USED FOR THAT PURPOSE.

To the extent your original obligation was discharged, or is subject to an automatic stay of bankruptcy under Title 11 of the United States Code, this notice is for compliance and/or informational purposes only and does not constitute an attempt to collect a debt or to impose personal liability for such obligation. However, a secured party retains rights under its security instrument, including the right to foreclose its lien.

TS No TX07000310-26-1

APN H78800601700470

TO No 260191173-TX-RWI

EXHIBIT "A"

LOT 47, BLOCK 17, HORIZON HEIGHTS UNIT 6, AN ADDITION TO EL PASO COUNTY, TEXAS,
ACCORDING TO THE PLAT THEREOF ON FILE IN VOLUME 23, PAGE 7, REAL PROPERTY
RECORDS, EL PASO COUNTY, TEXAS.